



**Housing Code Notice of Violation
CASE NO. 1052482-VI**

July 27, 2021

Property Owner: **EVERSPRING INN**
Property known as **8201 AURORA AVE N**
APN: 6430000810
LTS 1-4, BLK 5, OSNER'S 1ST ADD EXC THT POR OF SAID LT 1 COND
FOR STREET PER CO #19335, AS RECORDED IN RECORDS OF KING
COUNTY, WASHINGTON.

EVERSPRING INN
Ryan Kang
8201 AURORA AVE N
SEATTLE, WA 98103

We received a complaint about this property. Senior Housing and Zoning Inspector **Stephen Hinch**, 206-386-1987 or **Stephen.Hinch@seattle.gov**, investigated and found a violation or violations of the Seattle Housing and Building Maintenance Code, Chapter 22.206 of the Seattle Municipal Code.

THE VIOLATION(S) MUST BE CORRECTED BY MONDAY, AUGUST 30, 2021.

The specific violation(s) and correction(s) are as follows:

3RD FLOOR

UNIT 301

1. Repair or replace the loose toilet fixture in an approved manner. 22.206.050
2. Repair the cracked enamel surface of the bathtub in an approved manner. 22.206.050

UNIT 302

3. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
4. Replace faulty GFCI electrical receptacle and install proper fitting electrical box cover plate to unit outlet in an approved manner. 22.206.110, 22.206.120
5. Repair or replace the defective light switch in an approved manner. 22.206.120

UNIT 303

6. Repair or replace the plumbing leak in an approved manner. 22.206.050
7. Repair the cracked enamel surface of the bathtub in an approved manner. 22.206.050

UNIT 305

8. Repair or replace the unapproved plumbing assembly (flex p-trap) with a code approved plumbing assembly. 22.206.050
9. Install the missing cover for the bathroom fan in an approved manner. 22.206.080
10. Install the missing visitor observation port in an approved manner. 22.206.140 **SEE NOTE 43**

UNIT 306

11. Install the missing unit number. 22.206.160 **SEE NOTE 49**

UNIT 307

12. Enclose exposed electrical cable terminations at unit sink in a properly installed electric box enclosure in an approved manner. 22.206.110, 22.206.120 (PERMIT REQUIRED)
13. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
14. Install missing shower head in an approved manner. 22.206.050

UNIT 308

15. Install the missing plumbing assembly p-trap in unit sink with a code approved plumbing assembly. 22.206.050
16. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
17. Repair or replace the broken/cracked window glazing in an approved manner. 22.206.080

UNIT 309

18. Install missing plumbing assembly p-trap in an approved manner. 22.206.050
19. Repair the broken enamel surface of the bathtub in an approved manner. 22.206.050
20. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080
21. Remove barrier to egress... Windows are caulked closed and do not provide required egress. 22.206.130
22. Repair the detached backsplash to be permanently installed for the unit sink in an approved

manner. 22.206.080

UNIT 310

- 23. Repair or replace the loose doorknob of the unit entry door in an approved manner.
22.206.080
- 24. Repair the cracked enamel surface of the bathtub in an approved manner. 22.206.050
- 25. Repair the detached backsplash to be permanently installed for the unit sink in an approved manner. 22.206.080
- 26. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080
- 27. Repair or replace the defective window locking mechanism to operate in an approved manner.
22.206.080

UNIT 311

- 28. Install the missing handle of the bathtub in an approved manner. 22.206.050
- 29. Repair or replace the unapproved plumbing assembly (flex p-trap) in the bathroom and unit sink with a code approved plumbing assembly. 22.206.050
- 30. Repair or replace the defective window locking mechanism to operate in an approved manner.
22.206.080

UNIT 312

- 31. Install the missing unit number. 22.206.160 **SEE NOTE 49**
- 32. Install the missing visitor observation port in an approved manner. 22.206.140 **SEE NOTE 43**
- 33. Install the missing handle of the bathtub in an approved manner. 22.206.050
- 34. Repair the detached backsplash to be permanently installed for the unit sink in an approved manner. 22.206.080
- 35. Repair or replace the unapproved plumbing assembly (flex p-trap) of the unit sink with a code approved plumbing assembly. 22.206.050

UNIT 313

- 36. Install the missing handle of the bathtub in an approved manner. 22.206.050
- 37. Repair the detached backsplash to be permanently installed for the unit sink in an approved manner. 22.206.080
- 38. Repair or replace the defective window locking mechanism to operate in an approved manner.

22.206.080

39. Repair the broken wall covering at AC unit location in an approved manner or replace with new AC unit. 22.206.080

UNIT 314

40. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
41. Install the missing unit number to the unit entry door. 22.206.160
42. Enclose hole in wall covering around plumbing drain under the unit sink in an approved manner. 22.206.080
43. Repair or replace the plumbing leak at bathroom sink waste in an approved manner. 22.206.050
44. Repair or replace the unapproved plumbing assembly (flex p-trap) of the unit sink with a code approved plumbing assembly. 22.206.050
45. Install the missing visitor observation port in an approved manner. 22.206.140 **SEE NOTE 43**
46. Repair or replace the loose toilet fixture in an approved manner. 22.206.050
47. Install a required solid core entry to replace current hollow core door with a minimum 1 3/8" thickness capable to withstand forcible entry in an approved manner. 22.206.140

UNIT 316

48. Install the missing bathroom light shield in an approved manner. 22.206.080
49. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
50. Install shower head to work in an approved manner. 22.206.050

UNIT 317

51. Install the missing bathroom light shield in an approved manner. 22.206.080
52. Repair or replace the loose toilet fixture in an approved manner. 22.206.050
53. Repair or replace the loose and leaking faucet fixture of the tub in an approved manner. 22.206.050
54. Repair the detached backsplash to be permanently installed for the unit sink in an approved manner. 22.206.080
55. Replace all non-ground fault interrupter (GFI) receptacle outlets located within 3 feet of any

water source with GFI outlets in an approved manner. 22.206.110 **SEE NOTE 20A**

56. Repair or replace the defective window locking mechanism to operate in an approved manner.
22.206.080

57. Remove obstruction of the visitor observation port. 22.206.140

2ND FLOOR

UNIT 201

58. Repair or replace the loose toilet fixture in an approved manner. 22.206.050

59. Repair or replace the damaged bathroom door in an approved manner. 22.206.080

60. Install missing plumbing assembly p-trap in an approved manner. 22.206.050

61. Install shower head in an approved manner. 22.206.050

62. Install the loose bathroom light shield in an approved manner. 22.206.080

63. Repair or replace the deteriorated caulking around the bathtub in an approved manner.
22.206.050

64. Repair or replace the missing shower valve handle in an approved manner. 22.206.080

65. Repair or replace the broken/cracked window glazing in an approved manner. 22.206.080

66. Repair or replace the defective window locking mechanism to operate in an approved manner.
22.206.080

67. Repair all open ground electrical receptacle outlets throughout the bedroom to be grounded or replace with ungrounded two-prong outlets in an approved manner. 22.206.110, 22.206.120
(PERMIT REQUIRED TO GROUND) **SEE NOTE 54**

UNIT 202

68. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080

69. Repair or replace the broken/cracked window glazing in an approved manner. 22.206.080

70. Repair the broken ceiling covering by the bathroom fan in an approved manner. 22.206.080

71. Repair or replace the loose toilet fixture in an approved manner. 22.206.050

72. Repair or replace the unapproved plumbing assembly (flex p-trap) with a code approved plumbing assembly. 22.206.050

UNIT 203

73. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved

manner. 22.206.080

- 74. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
- 75. Repair or replace the loose toilet fixture in an approved manner. 22.206.050
- 76. Repair or replace the unapproved plumbing assembly (flex p-trap) with a code approved plumbing assembly. 22.206.050

UNIT 205

- 77. Repair or replace the unapproved plumbing assembly (flex p-trap) with a code approved plumbing assembly. 22.206.050
- 78. Install missing tub handle in an approved manner. 22.206.080
- 79. Install the missing bathroom light shield in an approved manner. 22.206.080
- 80. Repair all open ground electrical receptacle outlets throughout the bedroom to be grounded or replace with ungrounded two-prong outlets in an approved manner. 22.206.110, 22.206.120 (PERMIT REQUIRED TO GROUND) **SEE NOTE 54**

UNIT 206

- 81. Install missing tub handle in an approved manner. 22.206.080
- 82. Repair or replace the deteriorated caulking around the bathtub in an approved manner. 22.206.050
- 83. Repair or replace the loose toilet fixture in an approved manner. 22.206.050
- 84. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080
- 85. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
- 86. Repair or replace the broken/cracked window glazing in an approved manner. 22.206.080

UNIT 207

- 87. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080
- 88. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
- 89. Install a code approved plumbing assembly p-trap in an approved manner. 22.206.050

UNIT 208

- 90. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080
- 91. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
- 92. Replace the broken GFCI wall receptacle in an approved manner. 22.206.120

UNIT 209

- 93. Repair the broken enamel surface of the bathtub in an approved manner. 22.206.050
- 94. Repair or replace the plumbing leak at the bathroom sink in an approved manner. 22.206.050
- 95. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080

UNIT 210

- 96. Repair or replace the loose toilet fixture in an approved manner. 22.206.050
- 97. Install missing tub handle in an approved manner. 22.206.080
- 98. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080

UNIT 211

- 99. Repair or replace the loose toilet fixture in an approved manner. 22.206.050
- 100. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
- 101. Repair or replace the plumbing leak at the bathroom sink waste in an approved manner. 22.206.050
- 102. Repair or replace any faulty electrical receptacle outlets in an approved manner. 22.206.120

UNIT 212

- 103. Repair or replace the unapproved plumbing assembly (flex p-trap) with a code approved plumbing assembly. 22.206.050
- 104. Replace the missing shower mixing valve handle in an approved manner. 22.206.050
- 105. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080
- 106. Repair or replace the defective window locking mechanism to operate in an approved manner.

22.206.080

107. Repair or replace the damaged window frame in an approved manner. 22.206.080

UNIT 213

108. Repair or replace the unapproved plumbing assembly (flex p-trap) with a code approved plumbing assembly. 22.206.050

109. Repair the damaged enamel surface of the bathtub in an approved manner. 22.206.050

110. Repair or replace the loose bathtub faucet fixture in an approved manner. 22.206.050

111. Install shower head in an approved manner. 22.206.050

112. Install the missing cover for the bathroom fan in an approved manner. 22.206.080

113. Repair or replace faulty ground fault circuit interrupter in an approved manner. 22.206.110 **SEE NOTE 20A**

114. Repair or replace the missing wall covering at window surround in an approved manner. 22.206.080

115. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080

116. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080

UNIT 214

117. Repair or replace all faulty and non-working receptacle outlets throughout unit in an approved manner. 22.206.110, 22.206.120

118. Repair or replace the defective ceiling light fixture in an approved manner. 22.206.120

119. Repair or replace the defective bathroom fan in an approved manner. 22.206.080

120. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080

UNIT 215

121. Repair or replace the plumbing leak at the bathroom sink waste in an approved manner. 22.206.050

122. Install the tub handle in an approved manner. 22.206.080

123. Repair or replace the loose bathtub faucet fixture in an approved manner. 22.206.050

- 124. Repair all outlets throughout outlets in an approved manner. 22.206.110, 22.206.
- 125. Repair or replace loosely installed window to operate in an approved manner and provide proper caulking. 22.206.080
- 126. Replace glazing or install proper plexi-glass to meet the required 3/8" thickness in an approved manner. 22.206.080

UNIT 216

- 127. Repair or replace the unapproved plumbing assembly (flex p-trap) with a code approved plumbing assembly. 22.206.050
- 128. Repair or replace the loose toilet fixture in an approved manner. 22.206.050
- 129. Repair or replace the broken ceiling covering at bath fan in an approved manner. 22.206.080
- 130. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080

UNIT 217

- 131. Install bathtub handle in an approved manner. 22.206.080
- 132. Repair or replace the defective window locking mechanism to operate in an approved manner. 22.206.080
- 133. Install the missing visitor observation port in an approved manner. 22.206.140 **SEE NOTE 43**
- 134. Repair broken wall covering to window surround in an approved manner. 22.206.080

BOILER ROOM

- 135. Install earthquake strapping to both hot water heaters in an approved manner. 22.206.090
- 136. Gas line must be removed as trip hazard location along floor and secured in and approved manner to walls with appropriate connections to shutoff valves. 22.206.090
- 137. Gas vent connections should be sealed with approved aluminum tape. Current duct tape is not an approved sealant. 22.206.090
- 138. Exposed electrical... proper electric box covers should be installed to conceal exposed electric cables. 22.206.110
- 139. Remove OSB plywood barrier installed over windows to provide proper egress. 22.206.130

EXTERIOR

- 140. Repair or replace any missing siding and or holes in the building envelope in an approved manner. 22.206.080

141. Remove all outdoor junk and storage and any junk in shared areas including yards, courts, and garages. 22.206.160

GENERAL BUILDING

142. Repair or replace any broken and loose handrails of all interior stairways in an approved manner. 22.206.080
143. Install breaker blanks for all open circuit slots of the electric panel in an approved manner. 22.206.120
144. Discontinue the use of extension cord supplying power to destinations unknown in the garage chase way in an approved manner. 22.206.120
145. Repair or replace the broken or faulty electric receptacle outlets of the lobby in an approved manner. 22.206.120
146. Repair or replace the broken doorknob assembly of the lobby to stairway door in an approved manner. 22.206.080
147. Repair or replace any broken or missing floor coverings of all interior stairway in an approved manner. 22.206.080
148. Repair the fire door on second floor stairway to be self-latching in an approved manner. 22.206.130

NOTE 20A

All receptacle outlets within 3 feet of any water source must be of a ground fault interrupter style of receptacle installed in accordance with manufacturer's standards.

NOTE 43

Observation ports must be installed at a minimum height of 54 inches and a maximum height of 66 inches.

NOTE 54

An electrical permit and final acceptance inspection by the Electrical Inspector are required for correction of this item.

PENALTIES/FINES

If the violations are resolved before the deadline above, no penalties will apply. Once the deadline has passed, you may be subject to a civil penalty (fine) for a continued violation.

- For the first ten days of noncompliance, the penalty is up to \$150 per day beginning the day after the deadline above.
- The penalty increases to up to \$500 per day for each violation after the first ten days.
- Penalties continue to add up until the date the corrections are completed and the Housing and Zoning Inspector has inspected and confirmed that the property is in compliance.

- Certain violations are subject to additional penalties.

If you do not correct the violations by the deadline listed above, the City may file a lawsuit against you to collect the penalties. If this case goes to court, the City would have to prove that the code violation exists/existed in order to collect any penalties.

REQUEST FOR EXTENSION

You can ask the inspector for more time to complete correction of the violations. The request must be in writing and must explain why you need more time. Extensions will be granted only if substantial progress toward compliance has already been made.

INSPECTION CHARGES

An inspection charge of \$231 is charged for each inspection beyond the first two inspections in this case.

- The third inspection and each subsequent inspection will be charged.
- This charge is in addition to any per-day or other penalty or fine and you will be billed for this charge.

RECORDING

We may file a copy of this Notice of Violation with the King County Recorder's Office.

DIRECTOR'S REVIEW

If you disagree with this Notice of Violation, you may request a review of this Notice by a Department Review Officer. You must ask for this review within ten days. The Review Officer will review the facts of the case and determine whether the Notice of Violation was properly issued. The Review Officer can extend the compliance date for a short period of time even if the violation is upheld. But, the Review Officer cannot allow a violation to continue or grant a variance.

You may request the Review by writing to the Director of Code Compliance, in care of Inspector Stephen Hinch,

Seattle Department of Construction and Inspections
700 5th Avenue, Suite 1900
PO Box 34019
Seattle, WA 98124-4019

If you request a review by the Director, the request

- must be in writing,
- must be received by the Director no later than ten days following service of this Notice, and
- must contain the signature, mailing address and telephone number of the person requesting the review.

The request should also include a brief statement including

- specific objections to the Notice of Violation
- how the requestor is significantly affected by, or interested in, the Review by the Director.

If more than one person is cited in the Notice, the request for Review by the Director should specify the person to be contacted about the Review.

OBTAINING PERMITS

If you are constructing, repairing, adding an addition to, or demolishing a building, or if you are changing or establishing a use, you must obtain the proper permits. You may need more than one permit. Information on permits may be obtained at the SDCI Applicant Services Center, 700 5th Avenue, Suite 2000, 20th Floor, Seattle Municipal Tower, by calling 206-684-8850, or by visiting cosaccela.seattle.gov.

PLEASE BRING THIS DOCUMENT WITH YOU WHEN APPLYING FOR ANY PERMITS.

Even if a permit allows a longer time frame for completion of work, the compliance date in this Notice of Violation takes precedence over the completion dates specified in any permit.

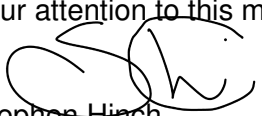
REQUEST FOR VARIANCE

In some cases, it is possible to obtain a "variance" from a requirement of the Housing and Building Maintenance Code. The variance is requested using a form provided by the Department and there is a charge for the variance review process (\$462 in 2021; check for updates). On the form, you must list the specific code standards you want to vary from, and explain how the requested variance meets the variance criteria in the code. Your inspector can give you the variance form which explains the process in more detail.

* * *

If needed, Senior Inspector Stephen Hinch will meet with you or someone representing you on the site to discuss how you will bring the property into compliance with the Housing and Building Maintenance Code.

Once you have corrected the violation, the inspector must inspect to verify compliance. If you need more information or would like a meeting, please contact the inspector. Thank you for your attention to this matter.



Stephen Hinch
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